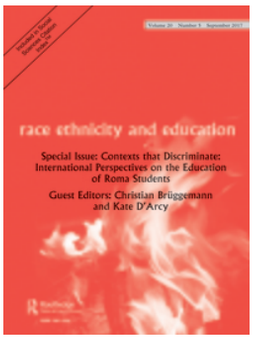

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Contexts that discriminate: international perspectives on the education of Roma students

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INTRODUCTION

Contexts that discriminate: international perspectives on the education of Roma students

Theoretical assumptions about educational disadvantages of minority students can be broadly distinguished between approaches assuming that inequality is triggered by characteristics of the minority students (their parents and communities) and approaches assuming that inequality is triggered by characteristics of institutional schooling and its surrounding dominant discourses (Diefenbach 2010, 90). Several articles published in this journal have emphasised the latter approach and explored the complex dynamics of racial and ethnic discrimination in education (e.g. Araújo 2016; Beratan 2008; Gafford Muhammad 2009; Gillies and Robinson 2012; Hamilton, Bloomer, and Potter 2012; Johnson 2007; Kruss 2001; Webb 2015). This special issue follows this tradition by concentrating on the ways in which education systems and prevailing discourses disadvantage minority learners.

Most contributions to this issue identify and analyse contexts that discriminate Roma students and thus influence their capabilities, self-perceptions and life chances. Discrimination is understood as all actions and practices of dominant groups that have a negative differential effect on subordinate groups (Feagin and Eckberg 1980, 9). Contexts that discriminate might include schools and classrooms (see Gkofa, this issue) but also educational policies (see Neumann, this issue), discourses (see Cashman and D'Arcy, this issue) and research (see Schuch, this issue).

Feagin (1977, 184) differentiates between four abstract types of discrimination: isolate discrimination, sporadic group discrimination, direct institutionalised discrimination and indirect institutionalised discrimination.[1] Whereas the first two violate social norms and regulations, the later are in accordance with social norms and regulations. While direct institutional discriminatory practices have by intention a negative differential effect on subordinate groups, indirect discriminatory practices have such an effect even though it is not intended. Unintended discriminatory effects might include indirect effects of discrimination resulting from direct discrimination in the past (past-in-present discrimination) or from direct discrimination in other organisational areas (side-effect discrimination) (Feagin, 1977, 186–187). The contributions to this issue identify various forms of direct and indirect institutionalised discrimination. Eszter Neumann's contribution further demonstrates that not only neutral norms, routines and practices but also well-intended affirmative action might lead to unintended outcomes that discriminate against certain groups or subgroups.[2]

Desegregation for some, but not for others

Eszter Neumann studies desegregation policies in a Hungarian municipality, concentrating on a period from the early 1990s to 2012. In the mid-1990s demographic and political developments significantly influenced the scope of action in many rural areas: A shrinking student population required school closures and school merges, and the introduction of free school choice led to the strengthening of parental demand as a determinant of educational provision. In the mid-2000s these developments met with a growing pressure of European and national equal opportunity policies calling for the desegregation of schools. Neumann investigates how policymakers 'manoeuvre' between conflicting national and local interests by negotiating enrolment procedures and catchment areas. She shows that local

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solutions adversely changed the life chances of different subordinate groups. For example, some poor but ambitious non-Roma families from the periphery gained access to highly prestigious inner-city schools and some students from poor and less educated backgrounds including Roma students gained access to non-segregated periphery schools, whereas Roma families who did not show commitment to mobility and parental choice remained in an increasingly stigmatised 'Ghetto school'. The resistance of local interest groups prevented all attempts of the local government to close that school since its students were labelled as impossible to integrate. Eszter Neumann identifies a local 'hierarchy of social integration' that integrated students according to the logics of an 'ascending order' supporting the life chances of some but at the same time increasing discrimination towards others.

Persistent segregation and the resistance against international legal pressure

Laura Cashman's article directs readers to one of the most relevant cases for the study of ethnic educational segregation: The disproportionate streaming of Roma into special schools in the Czech Republic. The European Court of Human Rights established (in the first ever process concerning educational segregation) in the case of *DH and Others vs the Czech Republic* (initiated 1999, decided 2007) that the severe overrepresentation of Roma in remedial special schools violated the European Convention of Human Rights, namely the prohibition of discrimination in conjunction with the right to education (O'Nions 2015). Cashman studies the persistent educational segregation of Roma students looking at institutional procedures and political developments since the *DH and Others* case. She identifies ingrained prejudice, colour-blind tests and socio-economic disadvantages as triggers of misdiagnosing Romani students as special needs subjects. Cashman argues that special schools have been re-labelled 'practical schools' (the 561/2004 Education Act came into force on 1 January 2005) but continue in their role and function. She further shows how strategies and action plans repeatedly failed to deliver desegregated educational provision. Due to institutional racism that pays 'lip service to inclusion' but favours the 'racialisation of ability' the segregation of Roma in separate schools persists.[3]

Sterilisation and extermination in the name of education research

In her historical analysis about the treatment of Sinti and Roma children in the Third Reich, Jane Schuch examines and contextualises a dissertation written by Eva Justin who was member of the Racial-Hygienic and Heredity Research Centre in the Reich Health Office. As Schuch points out, the mere existence of a dissertation entitled *The Life History of Alien-raised Gypsy Children and Their Descendants* (1944) is rather unlikely since national policy had already instructed in 1939 the exclusion of Jews, Gypsies and other minorities from schooling. Schuch reveals the manifold contradictions and ambivalences present in Justin's dissertation. Justin framed her thesis with reference to the dominant racial hygienic discourse that was characterised by a differentiation between valued and worthless life but at the same time applied bourgeois norms when working with Sinti children during her ethnographic field research. Neglecting and misinterpreting her own empirical results which suggested that most children indeed behaved according to middle class values, Justin finally suggested all attempts to educate 'Gypsies' were meaningless and recommended the sterilisation of all those 'Gypsies' who were 'assimilated' and 'raised in a German manner'. Schuch further discusses the stigmatisation of Sinti and Roma in post-World War Germany pointing to continuing patterns of discrimination – an obvious example being the later career of Eva Justin who continued to work as 'Gypsy expert' after the war.

Success against the odds

Most research about the education of Roma highlights disadvantages and failures and points to the magnitude of educational inequality and its consequences. Only few studies have focused at educational success of Roma students persevering against the odds.[4] Panagiota Gkofa studies educational biographies and identity constructions of Greek Roma university students. Using the cultural-ecologic theory developed by John U. Ogbu and refined by Margaret A. Gibson she explores how students make sense of

their educational biographies and academic success. Gkofa shows not only how Greek Roma university students have resisted discriminatory experiences but also how they balance apparently conflicting feelings with regard to their own careers on the one hand and the existing public images of the 'uneducated Gypsy' on the other. Even though considerable pressures suggested the need to discursively distance one's self-perception from public images, most student's identified with both national (feeling Greek) and ethno-cultural (feeling Roma) identities. Gkofa thus suggests that Roma university student identities should be understood as dynamic and multidimensional rather than oppositional or assimilated.

Traveller experiences, negative rhetoric and the need for counter-stories

Antigypsyism defined as images and stereotypes about supposed 'Gypsies' as well as acts of discrimination, exclusion and persecution of groups or individuals stigmatised as 'Gypsies' does not only target Roma populations but also groups such as Jenische or Traveller and other individuals and groups who are characterised as lazy, filthy and workshy on the one hand or exotic, careless and free on the other (End 2011, 16). Traveller is an umbrella term used in the UK and refers to various groups including Romany and Irish Travellers, but also, for example, Fairground and Circus families and New (Age) Travellers.[5] Kate D'Arcy applies a Critical Race 'lens' to analyse the continuing oppression of Travellers in the UK. She explores the potential of counter-stories, as a tool to illuminate discrimination of Travellers and its impact on educational inequalities. Evidence is drawn from a critical review of the literature and her own research. Kate points out that counter-stories are needed to challenge the way in which the negative 'stock stories' or stereotypes of Traveller communities shape wider society's impressions and judgments of these communities as different or deviant. The article proposes that Critical Race Theory counter-stories are one way of challenging Antigypsyism and improving Travellers' opportunities within society.

Taken together, the contributions to this issue add to the rare but growing academic literature about the discrimination of Roma students in education. They point to the importance of taking into account aspects such as for example political-historical contexts (Schuch, this issue), local political developments (Neumann, this issue) and as well as the perspectives of those who experience discrimination (Gkofa, this issue). This issue – rather than providing new insights into a theory of discrimination – demonstrates the empirical complexity of discriminatory contexts that continue to disadvantage minority learners.

Notes

1. See Gomolla and Radtke (2009) for an innovative application and refinement of Feagin's concept based on organisational theory.
2. On possible unintended consequences of targeted policies and educational interventions see also Matras, Leggio, and Steel (2015); Miškolci, Kováčová, and Kubánová (forthcoming); Timmer (2010) and Vermeersch (2012).
3. Whether infringement proceedings against the Czech Republic recently initiated by the European Commission for failing the Racial Equality Directive and a reform of special educational provision entering into force in September 2016 will make any difference remains to be seen.
4. See for example Abajo and Carrasco (2004), Bereményi and Carrasco Pons (2015), Brüggemann (2014), Kende (2007).
5. The term 'Roma and Traveller' is avoided where possible since we want to prevent the impression that travelling or nomadism is an inherent and universal part of Romani culture.

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